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IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT, DIVISION THREE
Appellate No. A173827; Super. Ct. No. CGC-21-594102; Hon.
Garrett L. Wong
Franciscus Dylan Rosario, Plaintiff and Appellant
(Self-Represented)
v. Subhi Abdelhalim, et al. dba SONOMA LIQUOR, DOES
1-50
Defendants and Respondents

**APPELLANT'S CONSOLIDATED
EXHIBITS**

**IN SUPPORT OF REPLY BRIEF, MOTION TO
DISREGARD MATTERS OUTSIDE THE RECORD,
AND SUPPLEMENTAL REQUEST FOR JUDICIAL
NOTICE**

CRC 8.74 / 8.204(d) / 8.252; Evid. Code, sections 451, 452, and
459

This file is a convenience compilation of writings already cited in Appellant's Reply Brief, Motion to Disregard Matters Outside the Record in Respondent's Brief, and Supplemental Request for Judicial Notice. It is not a new request for judicial notice of the certified Reporter's Transcript or Clerk's Transcript already on file.

Appendix I through III are CRC 8.204(d) record copies (also the ten-page Reply Brief attachment; this volume does not enlarge that attachment). Exhibits A through I are official public statutes and official Judicial Council CACI texts under CRC 8.252 and Evidence Code sections 451, 452, and 459 (also attached to the Supplemental RJN). Published opinions are not attached.

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IN THE COURT OF APPEAL OF THE STATE OF
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APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

APPENDIX I

Defense Exh. 500 / Clerk's Transcript volume 1, page 44

Notice basis: California Rules of Court, rule 8.204(d) (copies of exhibits or other parts of the record).

Source: Clerk's Transcript, volume 1, page 44 (Defense Exhibit 500). Overlay stamp on the following page identifies Appendix I.

SHORT TITLE: Rosario v. Abdelhalim, et al.

CASE NUMBER:

Second
(number)**CAUSE OF ACTION—General Negligence**Page 5ATTACHMENT TO ☒ Complaint ☐ Cross - Complaint

(Use a separate cause of action form for each cause of action.)

GN-1. Plaintiff (name): Franciscus Dylan Rosario

alleges that defendant (name): Subhi Abdelhalim, individually, and dba Sonoma Liquor

☒ Does 1 to 20

was the legal (proximate) cause of damages to plaintiff. By the following acts or omissions to act, defendant negligently caused the damage to plaintiff

on (date): February 4, 2021

at (place): Intersection of 5th Street and Tehama Street, San Francisco County, California

(description of reasons for liability):

1. Plaintiff re-alleges all allegations set forth prior and incorporates them herein by reference as though set forth herein.
2. Plaintiff Franciscus Dylan Rosario was riding a scooter northbound on 5th St. in the City/County of San Francisco, State of California. Defendant Abdelhalim and/or DOES 1-20 were traveling southbound 5th St. and attempted a right turn onto Tehama St., directly into the path of Plaintiff, striking Plaintiff and knocking him to the ground. Plaintiff was able to roll from the path of the box truck to avoid being run over by the vehicle. As a result, Plaintiff suffered damages requiring medical attention. Upon information and belief, Defendant Abdelhalim and/or DOES 1-20 did not see Plaintiff before the collision.
3. At the time of the subject incident, Defendant Abdelhalim and DOES 1-20 were driving within the course and scope of their employment with Defendant Sonoma Liquor, which is vicariously liable for the conduct of its employees that caused harm to Plaintiff Rosario.
4. Defendant Abdelhalim and/or DOES 1-20, in the course and scope of their employment with Sonoma Liquor, violated, including but not limited to, California Vehicle Code sections 22107 and 21804(a), which places a legal duty on the driver of a vehicle to yield the right-of-way to all traffic and exercise due care for the safety of anyone. Defendant Abdelhalim and/or DOES 1-20 failed to exercise due care for the safety of Plaintiff Rosario who was on a scooter at all relevant times, violating California Vehicle Code sections 22107 and 21804(a).
5. As a direct and proximate result of Defendant Abdelhalim and or DOES 1-20's violation of sections 22107 and 21804(a), Plaintiff suffered special and general damages in an amount to be determined at trial.
6. Plaintiff's injuries resulted from an incident of the kind that sections 22107 and 21804(a) were designed and adopted to prevent.
7. Plaintiff belongs to the class of persons that sections 22107 and 21804(a) were designed to protect.
8. Plaintiff reserves the right to identify more statutes, regulations, and/or ordinances that Defendants may have violated.

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Franciscus Dylan Rosario
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APPENDIX II

Augmented Clerk's Transcript, Exhibit A, Superior Court
document 09580112, pages 1, 7, 13, 15, 17, and 20

Notice basis: California Rules of Court, rule 8.204(d) (copies of
exhibits or other parts of the record).

Source: Augmented Clerk's Transcript, Exhibit A, Superior
Court document 09580112, pages 1, 7, 13, 15, 17, and 20. Overlay
stamps on the following pages identify Appendix II.

FILED
Superior Court of California
County of San Francisco

APR 22 2025

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

BY:

KIMBERLY SEPTIEN
Deputy Clerk

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Case Number: CGC-21-594102

SUBMISSIONS BY PLAINTIFF
RECEIVED BY THE COURT

On March 31st, the Court received Attachment A. This document titled: Plaintiff's Proposed Jury Instructions was submitted to the Court by plaintiff via email. These proposed jury instructions were resubmitted to the Court on April 21, 2025, for the Court's consideration.

On April 19, 2025, the Court received Attachment B via email: Plaintiff's proposed verdict form.


KIMBERLY SEPTIEN
Clerk

pecially near pedestrians.

CACI 700 – Vehicular Basic Standard of Care:

- Drivers must use reasonable care to avoid harming others on public roadways;
- Defendant breached this duty by failing to yield the right-of-way.

CACI 707 – Duty of Driver to Pedestrians:

- Explicit duty of drivers to yield to pedestrians within marked crosswalks.

IV. PLAINTIFF’S PROPOSED JURY INSTRUCTION

HIT-AND-RUN AND DRIVER’S DUTY TO PROVIDE ASSISTANCE

CACI No. 721 - Driver’s Duty After Accident—Veh. Code, §§ 20001, 20003, 20004.

Under California law, a driver involved in an accident resulting in injury to another person is required to comply immediately with specific legal duties at the scene of the collision. These duties include the following:

1. Stop Immediately:

The driver must stop at the scene of the accident and remain there until having fulfilled the obligations imposed by law.

2. Provide Reasonable Assistance:

The driver must provide reasonable assistance to any injured person, including arranging or providing transportation to a hospital or medical facility if necessary or requested by the injured party.

3. Exchange Information:

The driver is required to provide accurate personal identification, including their full name, current address, driver’s license information, vehicle registration number, and insurance policy details to the injured party and authorities at the scene of the accident.

4. Report to Authorities:

The driver must promptly and accurately report the collision to local law enforcement authorities.

CACI Nos. 100–107 (General Duty of Jury), 204 (Spoliation), 400–406 (Negligence and Causation), 430 (Substantial Factor), 700–710 (Motor Vehicle Duties), 3920–3929 (Personal Injury Damages), 5000–5009 (Pedestrian Cases and Deliberations), and applicable insurer-related instructions (e.g., 2330–2337).

Plaintiff Evidence, Testimony, and Procedural Context:

1. Evaluation of Plaintiff’s Evidence in Absence of Expert Testimony

Due to procedural limitations imposed by the Defendant, the Plaintiff was unable to present expert medical testimony.

Jurors may still assess Plaintiff’s injuries using:

- Medical records received into evidence,
- Testimony from Plaintiff and other lay witnesses,
- Their own reason, experience, and common sense.

CACI 5003 – Use of Common Sense; Evaluation of Lay Testimony

2. Evaluation of a Self-Represented Plaintiff

A person has the right to represent themselves. You must not consider the Plaintiff’s lack of legal training or courtroom formality against them.

The case should be evaluated solely on the merits, evidence, and law.

Judicial fairness principles; See also CACI 107 – Credibility of Witnesses

3. Consideration of Plaintiff’s Medical Condition

If you find that Plaintiff suffers from neurological injuries affecting speech, comprehension, or ability to present the case, you must consider this with understanding and fairness.

Do not discredit the Plaintiff’s testimony solely due to communication difficulties.

CACI 3928 – Effect of Preexisting Condition or Disability; CACI 5003 – Common Sense Assessment

1 8. Deprivation of Medical Testimony and Records

2 If the Defendant obstructed or caused delays in obtaining treating physician depo-
3 sitions or records, and this disadvantaged Plaintiff, you may consider the impact
4 this had on Plaintiff's case.

5 **CACI 204 – Suppression of Evidence**

6
7 9. Reliability of Official Records

8 You may consider police reports, hospital records, and 911 recordings as reliable
9 unless there is credible reason to doubt their accuracy.

10 Conflicts between these and witness accounts may impact your credibility findings.

11 **CACI 5003 – Use of Common Sense; Evid. Code § 1280**

12
13 10. Community Standards and Duty of Care

14 Drivers owe a duty of care to pedestrians.

15 You may consider whether Defendant's actions fell below that standard, especially
16 in busy pedestrian zones.

17 **CACI 400 – Basic Duty of Care, 401 – Breach of Duty, 700 – Basic Standard**
18 **of Care for Drivers, 710 – Duty to Pedestrians**

19
20 11. Consideration of Punitive Damages

21 If Defendant acted with oppression, fraud, or malice—such as lying, hiding evi-
22 dence, or showing reckless disregard—you may consider whether punitive dam-
23 ages are warranted.

24 **CACI 3940 – Punitive Damages (Individual), 3942 – Reckless Indifference**

25
26 12. Empowerment of the Jury

27 You are the sole judges of the facts.

28 You are empowered to ensure fairness and justice by applying the law to the facts

1
2 17. Role of Insurance Companies in Delayed Recovery

3 If the insurer failed to investigate in a timely manner or denied the claim wrong-
4 fully, contributing to ongoing hardship, this may be relevant to your damages de-
5 termination.

6 **CACI 2331 – Bad Faith; Insurance Code § 790.03(h)**

7
8 18. Psychological and Emotional Impact of Self-Advocacy

9 You may consider added emotional stress caused by Plaintiff's need to self-represent
10 under adverse conditions as part of non-economic damages.

11 **CACI 3905C – Emotional Distress; CACI 3920 – Pain and Suffering**

12
13 19. Denial of Criminal Complaint and Institutional Indifference

14 You may consider whether law enforcement ignored Plaintiff's criminal complaint
15 or evidence, and whether that inaction caused emotional harm or delayed civil re-
16 dress.

17
18 20. Community Safety and Defendant's Conduct

19 Consider whether the Defendant's driving behavior showed disregard for pedes-
20 trian safety in a high-risk zone.

21 **CACI 401 – Breach of Duty; 710 – Pedestrian Safety**

22
23 21. Role of the Jury as Voice of the Community

24 As jurors, you safeguard community standards of care and justice.

25 Your verdict reflects the values of fairness, accountability, and safety.

26 **CACI 100 – Role of the Jury**

27
28 22. Summary of Duty to Evaluate Fairly

CACI 3940 – Punitive Damages (Individual Defendants); CACI 3942 – Reckless Indifference to Rights of Others

28. Affirmation of Community Duty of Care

Drivers, business owners, and insurance companies owe duties to the public.

Their actions must reflect the safety, fairness, and responsibility expected by the community.

You may consider whether Defendant or related parties violated that duty and caused harm.

CACI 400 – Duty of Care; CACI 401 – Breach of Duty; CACI 700–710 – Duties of Drivers and Owners

29. Scrutiny of Defense Tactics and Distractions

You may consider whether the Defendant attempted to distract from direct evidence by using irrelevant arguments or procedural tactics.

Your verdict must be based solely on the admitted trial evidence, not distractions or unsupported claims.

Negligent or reckless conduct must be held accountable under the law.

CACI 100 – Duty of the Jury; CACI 204 – Suppression or Fabrication of Evidence

PLAINTIFF'S REQUEST FOR SPECIAL JURY INSTRUCTIONS (Part III)

Lay Witness Testimony and Use of Demonstrative Exhibits

To be read in conjunction with CACI Nos. 107, 219, 220, 221, 222, 223, 5003, 5006, and applicable provisions of the Evidence Code, including §§ 210, 800–803.

30. Evaluation of Lay Witness Testimony

Testimony from non-expert (lay) witnesses may be considered in evaluating the

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Franciscus Dylan Rosario
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dba SONOMA LIQUOR, DOES 1-50
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APPENDIX III

Augmented Clerk's Transcript, Superior Court document
09577565, page 2

Notice basis: California Rules of Court, rule 8.204(d) (copies of exhibits or other parts of the record).

Source: Augmented Clerk's Transcript, Superior Court document 09577565, page 2. Overlay stamp on the following page identifies Appendix III.

SUPERIOR COURT OF CALIFORNIA
County of San Francisco

Honorable GARRETT L. WONG, Judge Presiding
Department 504

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Case Number: CGC-21-594102

JURY REQUEST FORM # 1

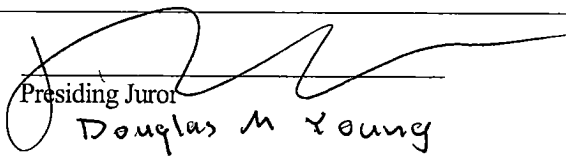
WE, the Jury in the above-entitled action, request the following:

In considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code Sections 22107 and 21804(a). If so could we be instructed on those provisions?

This 23rd day of April, 2025

Time: 10:09

Presiding Juror


Douglas M. Young

COURT Response:

You may not consider Vehicle Code sections 22107 and/or 21804(a) nor will the court instruct the jury on those provisions.

This 23rd day of April, 2025

Time: 10:37 A.M.


Hon. Garrett L. Wong
Judge of the Superior Court

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EXHIBIT A

California Vehicle Code sections 22107 and 21804

Notice basis: Evidence Code, section 451, subdivision (a).

Source: California Legislative Information
(leginfo.legislature.ca.gov). Enactment parentheticals are
those published with the official section text.

Vehicle Code section 22107

Vehicle Code - VEH

DIVISION 11. RULES OF THE ROAD | CHAPTER 6. Turning and Stopping and Turning Signals

22107.

No person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with reasonable safety and then only after the giving of an appropriate signal in the manner provided in this chapter in the event any other vehicle may be affected by the movement.

(Amended by Stats. 1959, Ch. 1996.)

Vehicle Code section 21804

Vehicle Code - VEH

DIVISION 11. RULES OF THE ROAD | CHAPTER 4. Right- of-Way

21804.

- (a) The driver of any vehicle about to enter or cross a highway from any public or private property, or from an alley, shall yield the right-of-way to all traffic, as defined in Section 620, approaching on the highway close enough to constitute an immediate hazard, and shall continue to yield the right-of-way to that traffic until he or she can proceed with

reasonable safety.

- (b) A driver having yielded as prescribed in subdivision (a) may proceed to enter or cross the highway, and the drivers of all other vehicles approaching on the highway shall yield the right-of-way to the vehicle entering or crossing the intersection.

(Amended by Stats. 1988, Ch. 623, Sec. 5.)

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EXHIBIT B

California Vehicle Code sections 360 and 620

Notice basis: Evidence Code, section 451, subdivision (a).

Source: California Legislative Information
(leginfo.legislature.ca.gov). Section 620 retrieved August
19, 2026. Enactment parentheticals are those published with the
official section text.

Vehicle Code section 360

Vehicle Code - VEH

DIVISION 1. WORDS AND PHRASES DEFINED [100 - 681]

360.

"Highway" is a way or place of whatever nature, publicly maintained and open to the use of the public for purposes of vehicular travel. Highway includes street.

(Enacted by Stats. 1959, Ch. 3.)

Vehicle Code section 620

Vehicle Code - VEH

DIVISION 1. WORDS AND PHRASES DEFINED [100 - 681]

(Division 1 enacted by Stats. 1959, Ch. 3.)

620.

The term "traffic" includes pedestrians, ridden animals, vehicles, street cars, and other conveyances, either singly or together, while using any highway for purposes of travel.

(Enacted by Stats. 1959, Ch. 3.)

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EXHIBIT C

Judicial Council of California Civil Jury Instruction CACI No.
705, Turning (Veh. Code, section 22107), including Directions
for Use and Sources and Authority

Notice basis: Evidence Code, section 452, subdivision (c).

Source: Judicial Council of California Civil Jury Instructions
(2026 edition), as adopted by the Judicial Council December
2025, official PDF hosted at courts.ca.gov, instruction beginning
at PDF page 629. Secondary Sources (treatise lists) are omit-
ted. Ligatures and en dashes in the source PDF are rendered in
ASCII.

705. Turning (Veh. Code, section 22107)

A driver must use reasonable care when turning [or moving to the right or to the left].

New September 2003

Directions for Use

An instruction on this point should be given only if the jury is instructed on Vehicle Code section 22107. It should be read after that section has been given. (Anderson v. Latimer (1985) 166 Cal.App.3d 667, 672 to 673 [212 Cal.Rptr. 544].)

Sources and Authority

- Turning and Changing Lanes. Vehicle Code section 22107.
- "This provision does not require the driver to know that a turn can be made with safety but only that he must exercise reasonable care, and whether such care has been exercised is normally a question of fact." (Butigan v. Yellow Cab Co. (1958) 49 Cal.2d 652, 656 [320 P.2d 500].)
- Courts have held that a reading of section 22107 should be followed by an instruction clarifying that the driver is under a duty to exercise only as much care as a reasonably prudent person when making a turn or movement: "An instruction to a jury concerning Vehicle Code, section 544 [now 22107] must make it clear that the driver who is about to turn must exercise such care as would a reasonably prudent man

under similar circumstances, no more and no less.” (Lewis v. Franklin (1958) 161 Cal.App.2d 177, 184 [326 P.2d 625].)

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EXHIBIT D

Judicial Council of California Civil Jury Instructions CACI No. 707, Speed Limit (Veh. Code, section 22352), and CACI No. 710, Duties of Care for Pedestrians and Drivers in Crosswalk (Veh. Code, section 21950), including Directions for Use (where published) and Sources and Authority, and California Vehicle Code section 21950

Notice basis: Evidence Code, section 452, subdivision (c) (CACI Nos. 707 and 710); Evidence Code, section 451, subdivision (a) (Veh. Code, section 21950).

Source: Judicial Council of California Civil Jury Instructions (2026 edition), as adopted by the Judicial Council December 2025, official PDF hosted at courts.ca.gov. CACI 707 begins at PDF page 632. CACI 710 begins at PDF page 636. Official titles are as published in that edition. Secondary Sources (treatise lists) are omitted. Ligatures and en dashes in the source PDF are rendered in ASCII. The 2026 Judicial Council edition does not include a separate Directions for Use paragraph for CACI No. 707. Vehicle Code section 21950 is the currently operative public statutory text from California Legislative Information

(leginfo.legislature.ca.gov). Enactment parentheticals are those published with the official section text.

707. Speed Limit (Veh. Code, section 22352)

The speed limit where the accident occurred was [insert number] miles per hour.

The speed limit is a factor to consider when you decide whether or not [name of plaintiff/name of defendant] was negligent. A driver is not necessarily negligent just because the driver was driving faster than the speed limit. However, a driver may be negligent even if the driver was driving at or below the speed limit.

New September 2003; Revised May 2020

Sources and Authority

- Speed Limits. Vehicle Code section 22352.
- Speeding as Negligence. Vehicle Code section 40831.
- A party is entitled to an instruction that the prima facie speed limit is a factor for the jury to consider in making its negligence determination. (*Hardin v. San Jose City Lines, Inc.* (1953) 41 Cal.2d 432, 439 [260 P.2d 63].)
- "The mere driving of an automobile in excess of the speed limit does not show negligence as a matter of law. The jury was free to find [defendant] not guilty of negligence even if they found that he was exceeding the speed limit." (*Williams v. Cole* (1960) 181 Cal.App.2d 70, 74 [5 Cal.Rptr. 24], internal citations omitted.)

- The burden of proving negligence in a civil action is on the party charging negligence, and even if such party has established speed in excess of the applicable prima facie limit the party must establish negligence under the circumstances. (Faselli v. Southern Pacific Co. (1957) 150 Cal.App.2d 644, 648 [310 P.2d 698].)
- "Even though the Texaco truck was traveling at a speed less than the maximum specified in the Vehicle Code, the reasonableness of its speed was a question of fact under all the circumstances, and circumstances may make travel at a speed less than the maximum rate a negligent operation of a motor vehicle." (Scott v. Texaco, Inc. (1966) 239 Cal.App.2d 431, 436 to 437 [48 Cal.Rptr. 785], internal citations omitted.)

710. Duties of Care for Pedestrians and Drivers in Crosswalk (Veh. Code, section 21950)

A driver of a vehicle must yield the right-of-way to a pedestrian who is crossing the roadway within any marked crosswalk or within any unmarked crosswalk at an intersection. When approaching a pedestrian who is within any marked or unmarked crosswalk, a driver must use reasonable care and must reduce the vehicle's speed or take any other action necessary to ensure the safety of the pedestrian.

Pedestrians must also use reasonable care for their own safety.

Pedestrians may not suddenly leave a curb or other place of safety and walk or run into the path of a vehicle that is so close as to constitute an immediate hazard. Pedestrians also must not unnecessarily stop or delay traffic while in a marked or unmarked crosswalk.

The failure of a pedestrian to exercise reasonable care does not relieve a driver of a vehicle from the duty of exercising reasonable care for the safety of any pedestrian within any marked crosswalk or within any unmarked crosswalk at an intersection.

New September 2003; Revised December 2016, May 2020

Directions for Use

This instruction sets forth the respective duties of drivers and pedestrians in a crosswalk. (See Veh. Code, section 21950.) Crosswalk accidents often present a comparative negligence analysis based on the statutory duties of both parties.

Sources and Authority

- Right-of-Way at Crosswalks. Vehicle Code section 21950.
- Vehicles Stopped for Pedestrians at Crosswalks. Vehicle Code section 21951.
- "Driving a motor vehicle may be sufficiently dangerous to warrant special instructions, but it is not so hazardous that it always requires 'extreme caution.'" (Menchaca v. Helms Bakeries, Inc. (1968) 68 Cal.2d 535, 544 [67 Cal.Rptr. 775,

439 P.2d 903], internal citations omitted.)

- "When the pedestrian suddenly leaves his place of safety, the vehicle must be so close as to constitute an immediate hazard. Such wording [in Veh. Code, section 21950] indicates the statute was intended to apply to those situations where a pedestrian unexpectedly asserts his right-of-way in an intersection at a time when the vehicle is so close that it is virtually impossible to avoid an accident. Typical situations include when a pedestrian steps, jumps, walks or runs directly in front of a vehicle travelling in lanes which are adjacent to the curb or other place of safety occupied by the pedestrian. Under such circumstances, the vehicle would most certainly constitute an immediate hazard to the pedestrian." (*Spann v. Ballesty* (1969) 276 Cal.App.2d 754, 761 [81 Cal.Rptr. 229], original italics.)
- "It is undisputed that defendant did not yield the right of way to plaintiff. Such failure constitutes a violation of the statute and negligence as a matter of law in the absence of reasonable explanation for defendant's conduct." (*Schmitt v. Henderson* (1969) 1 Cal.3d 460, 463 [82 Cal.Rptr. 502, 462 P.2d 30].)
- "When, as here, each motorist has acted reasonably and the pedestrian has failed to exercise due care for her own safety, the law of this state does not permit the technical violation

of the pedestrian's right of way statute to impose negligence on the motorists as a matter of law. The statute creates a preferential, but not absolute, right in favor of the pedestrian who is still under a duty to exercise ordinary care.” (Byrne v. City and County of San Francisco (1980) 113 Cal.App.3d 731, 742 [170 Cal.Rptr. 302], internal citation omitted.)

- ”While it is the duty of both the driver of a motor vehicle and a pedestrian, using a public roadway, to exercise ordinary care, that duty does not require necessarily the same amount of caution from each. The driver of a motor vehicle, when ordinarily careful, will be alertly conscious of the fact that he is in charge of a machine capable of projecting into serious consequences any negligence of his own. Thus his caution must be adequate to that responsibility as related to all the surrounding circumstances. A pedestrian, on the other hand, has only his own physical body to manage and with which to set in motion a cause of injury. While, usually, that fact limits his capacity to cause injury, as compared with a vehicle driver, still, in exercising ordinary care, he, too, will be alertly conscious of the mechanical power acting, or that may act, on the public roadway, and of the possible, serious consequences from any conflict between himself and such forces. And the caution required of him is measured by the possibilities of injury apparent

to him in the conditions at hand, or that would be apparent to a person of ordinary prudence in the same position.” (Cucinella v. Weston Biscuit Co. (1954) 42 Cal.2d 71, 75 to 76, 81 [265 P.2d 513] [proposed jury instruction correctly stated the law].)

Vehicle Code section 21950

Vehicle Code - VEH

DIVISION 11. RULES OF THE ROAD | CHAPTER 5. Pedestrians' Rights and Duties

21950.

- (a) The driver of a vehicle shall yield the right-of-way to a pedestrian crossing the roadway within any marked crosswalk or within any unmarked crosswalk at an intersection, except as otherwise provided in this chapter.
- (b) This section does not relieve a pedestrian from the duty of using due care for their safety. No pedestrian may suddenly leave a curb or other place of safety and walk or run into the path of a vehicle that is so close as to constitute an immediate hazard. No pedestrian may unnecessarily stop or delay traffic while in a marked or unmarked crosswalk.
- (c) The driver of a vehicle approaching a pedestrian within any marked or unmarked crosswalk shall exercise all due care and shall reduce the speed of the vehicle or take any other

action relating to the operation of the vehicle as necessary to safeguard the safety of the pedestrian.

(d) Subdivision (b) does not relieve a driver of a vehicle from the duty of exercising due care for the safety of any pedestrian within any marked crosswalk or within any unmarked crosswalk at an intersection.

(e) (1) A peace officer, as defined in Chapter 4.5 (commencing with Section 830) of Title 3 of Part 2 of the Penal Code, shall not stop a pedestrian for a violation of this section unless a reasonably careful person would realize there is an immediate danger of a collision with a moving vehicle or other device moving exclusively by human power.

(2) This subdivision does not relieve a pedestrian from the duty of using due care for their safety.

(3) This subdivision does not relieve a driver of a vehicle from the duty of exercising due care for the safety of any pedestrian within the roadway.

(Amended by Stats. 2022, Ch. 957, Sec. 8. (AB 2147) Effective January 1, 2023.)

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT E

California Code of Civil Procedure sections 613, 614, and 647

Notice basis: Evidence Code, section 451, subdivision (a).

Source: California Legislative Information
(leginfo.legislature.ca.gov). Enactment parentheticals are
those published with the official section text.

Code of Civil Procedure section 613

Code of Civil Procedure - CCP

PART 2. OF CIVIL ACTIONS | TITLE 8. OF THE TRIAL
AND JUDGMENT | CHAPTER 4. Trial by Jury | ARTICLE 2.
Conduct of the Trial

613.

When the case is finally submitted to the jury, they may decide in court or retire for deliberation. If they retire, they must be kept together in some convenient place, under charge of an officer, until at least three-fourths of them agree upon a verdict or are discharged by the court. Unless by order of the court, the officer having them under his or her charge shall not permit any communication to be made to them, including any form of electronic or wireless communication, or make any himself or herself, except to ask them if they or three-fourths of them are agreed upon a verdict. The officer shall not, before their verdict is rendered, communicate to any person the state of their deliberations, or the verdict agreed upon.

(Amended by Stats. 2011, Ch. 181, Sec. 2. (AB 141) Effective January 1, 2012.)

Code of Civil Procedure section 614

Code of Civil Procedure - CCP

PART 2. OF CIVIL ACTIONS | TITLE 8. OF THE TRIAL

AND JUDGMENT | CHAPTER 4. Trial by Jury | ARTICLE 2.
Conduct of the Trial

614.

After the jury have retired for deliberation, if there be a disagreement between them as to any part of the testimony, or if they desire to be informed of any point of law arising in the cause, they may require the officer to conduct them into Court. Upon their being brought into Court, the information required must be given in the presence of, or after notice to, the parties or counsel.

(Enacted 1872.)

Code of Civil Procedure section 647

Code of Civil Procedure - CCP

PART 2. OF CIVIL ACTIONS [307 - 1062.34] (Part 2 enacted 1872.) TITLE 8. OF THE TRIAL AND JUDGMENT IN CIVIL ACTIONS [577 - 674] (Title 8 enacted 1872.) CHAPTER 7. Provisions Relating to Trials in General [646 - 663.2] (Chapter 7 enacted 1872.) ARTICLE 1. Exceptions [646 - 647] (Article 1 enacted 1872.)

647.

All of the following are deemed excepted to: the verdict of the jury; the final decision in an action or proceeding; an interlocutory order or decision, finally determining the rights of the parties,

or some of them; an order or decision from which an appeal may be taken; an order sustaining or overruling a demurrer, allowing or refusing to allow an amendment to a pleading, striking out or refusing to strike out a pleading or a portion thereof, or refusing a continuance; an order made upon ex parte application, giving an instruction, refusing to give an instruction, or modifying an instruction requested; an order or decision made in the absence of the party or an order granting or denying a nonsuit or a motion to strike out evidence or testimony; a ruling sustaining or overruling an objection to evidence; and any statement or other action of the court in commenting upon or in summarizing the evidence. If the party, at the time when the order, ruling, action or decision is sought or made, or within a reasonable time thereafter, makes known his position thereon, by objection or otherwise, all other orders, rulings, actions or decisions are deemed to have been excepted to.

(Amended by Stats. 1963, Ch. 99.)

IN THE COURT OF APPEAL OF THE STATE OF
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DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
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Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT F

California Evidence Code sections 140, 310, and 451

Notice basis: Evidence Code, section 451, subdivision (a).

Source: California Legislative Information
(leginfo.legislature.ca.gov). Enactment parentheticals are
those published with the official section text. Curly quotation
marks in the LegInfo publication of section 140 are rendered as
ASCII quotation marks.

Evidence Code section 140

Evidence Code - EVID

DIVISION 2. WORDS AND PHRASES DEFINED [100 - 260]

(Division 2 enacted by Stats. 1965, Ch. 299.)

140.

”Evidence” means testimony, writings, material objects, or other things presented to the senses that are offered to prove the existence or nonexistence of a fact.

(Enacted by Stats. 1965, Ch. 299.)

Evidence Code section 310

Evidence Code - EVID

DIVISION 3. GENERAL PROVISIONS [300 - 413] (Division 3 enacted by Stats. 1965, Ch. 299.)

CHAPTER 2. Province of Court and Jury [310 - 312] (Chapter 2 enacted by Stats. 1965, Ch. 299.)

310.

- (a) All questions of law (including but not limited to questions concerning the construction of statutes and other writings, the admissibility of evidence, and other rules of evidence) are to be decided by the court. Determination of issues of fact preliminary to the admission of evidence are to be

decided by the court as provided in Article 2 (commencing with Section 400) of Chapter 4.

- (b) Determination of the law of an organization of nations or of the law of a foreign nation or a public entity in a foreign nation is a question of law to be determined in the manner provided in Division 4 (commencing with Section 450).

(Enacted by Stats. 1965, Ch. 299.)

Evidence Code section 451

Evidence Code - EVID

DIVISION 4. JUDICIAL NOTICE [450 - 460] (Division 4 enacted by Stats. 1965, Ch. 299.)

451.

Judicial notice shall be taken of the following:

- (a) The decisional, constitutional, and public statutory law of this state and of the United States and the provisions of any charter described in Section 3, 4, or 5 of Article XI of the California Constitution.
- (b) Any matter made a subject of judicial notice by Section 11343.6, 11344.6, or 18576 of the Government Code or by Section 1507 of Title 44 of the United States Code.
- (c) Rules of professional conduct for members of the bar adopted

pursuant to Section 6076 of the Business and Professions Code and rules of practice and procedure for the courts of this state adopted by the Judicial Council.

- (d) Rules of pleading, practice, and procedure prescribed by the United States Supreme Court, such as the Rules of the United States Supreme Court, the Federal Rules of Civil Procedure, the Federal Rules of Criminal Procedure, the Admiralty Rules, the Rules of the Court of Claims, the Rules of the Customs Court, and the General Orders and Forms in Bankruptcy.
- (e) The true signification of all English words and phrases and of all legal expressions.
- (f) Facts and propositions of generalized knowledge that are so universally known that they cannot reasonably be the subject of dispute.

(Amended by Stats. 1986, Ch. 248, Sec. 43.)

IN THE COURT OF APPEAL OF THE STATE OF
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Franciscus Dylan Rosario
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v.

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dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT G

Judicial Council of California Civil Jury Instruction CACI No.
401, Basic Standard of Care, including Sources and Authority

Notice basis: Evidence Code, section 452, subdivision (c).

Source: Judicial Council of California Civil Jury Instructions (2026 edition), as adopted by the Judicial Council December 2025, official PDF hosted at courts.ca.gov, instruction beginning at PDF page 311 (folio 237). Secondary Sources (treatise lists) are omitted. Ligatures and en dashes in the source PDF are rendered in ASCII. The 2026 Judicial Council edition does not include a separate Directions for Use paragraph for CACI No. 401.

401. Basic Standard of Care

Negligence is the failure to use reasonable care to prevent harm to oneself or to others.

A person can be negligent by acting or by failing to act. A person is negligent if that person does something that a reasonably careful person would not do in the same situation or fails to do something that a reasonably careful person would do in the same situation.

You must decide how a reasonably careful person would have acted in [name of plaintiff/defendant]'s situation.

New September 2003; Revised May 2020

Sources and Authority

- "The formulation of the standard of care is a question of law for the court. Once the court has formulated the standard, its application to the facts of the case is a task for the trier of fact if reasonable minds might differ as to whether a party's conduct has conformed to the standard." (Ramirez v. Plough, Inc. (1993) 6 Cal.4th 539, 546 [25 Cal.Rptr.2d 97, 863 P.2d 167], internal citations omitted.)
- The California Supreme Court has stated: "Because application of [due care] is inherently situational, the amount of care deemed reasonable in any particular case will vary, while at the same time the standard of conduct itself re-

mains constant, i.e., due care commensurate with the risk posed by the conduct taking into consideration all relevant circumstances. [Citations].” (Flowers v. Torrance Memorial Hospital Medical Center (1994) 8 Cal.4th 992, 997 [35 Cal.Rptr.2d 685, 884 P.2d 142]; see also Tucker v. Lombardo (1956) 47 Cal.2d 457, 464 [303 P.2d 1041].)

- The proper conduct of a reasonable person in a particular situation may become settled by judicial decision or may be established by statute or administrative regulation. (Ramirez, supra, 6 Cal.4th at p. 547.) (See CACI Nos. 418 to 421 on negligence per se.)

IN THE COURT OF APPEAL OF THE STATE OF
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Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

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Defendants and Respondents

EXHIBIT H

Judicial Council of California Civil Jury Instruction CACI No. 418, Presumption of Negligence per se, including Directions for Use and Sources and Authority, and California Evidence Code section 669

Notice basis: Evidence Code, section 452, subdivision (c) (CACI No. 418); Evidence Code, section 451, subdivision (a) (Evid. Code, section 669).

Source: Judicial Council of California Civil Jury Instructions (2026 edition), as adopted by the Judicial Council December 2025, official PDF hosted at courts.ca.gov, instruction beginning at PDF page 338 (folio 264). Secondary Sources (treatise lists) are omitted. Ligatures and en dashes in the source PDF are rendered in ASCII. Evidence Code section 669 is the currently operative public statutory text from California Legislative Information ([leginfo.legislature.ca.gov](https://leginfo.ca.gov)), harvested into CASE-LAW-AND-STATUTES/statutes-cal/EVID-669.md. Enactment parentheticals are those published with the official section text.

418. Presumption of Negligence per se

[Insert citation to statute, regulation, or ordinance] states:

.

If [name of plaintiff/defendant] proves

1. That [name of defendant/plaintiff] violated this law and
2. That the violation was a substantial factor in bringing about the harm,

then you must find that [name of defendant/plaintiff] was negligent [unless you also find that the violation was excused].

If you find that [name of defendant/plaintiff] did not violate this law or that the violation was not a substantial factor in bringing about the harm [or if you find the violation was excused], then you must still decide whether [name of defendant/plaintiff] was negligent in light of the other instructions.

New September 2003; Revised December 2005, June 2011, November 2020

Directions for Use

This jury instruction addresses the establishment of the two factual elements underlying the presumption of negligence. If they are not established, then a finding of negligence cannot be based on the alleged statutory violation. However, negligence can still be proven by other means. (See *Nunneley v. Edgar Hotel* (1950))

36 Cal.2d 493, 500 to 501 [225 P.2d 497].)

If a rebuttal is offered on the ground that the violation was excused, then the bracketed portion in the second and last paragraphs should be read. For an instruction on excuse, see CACI No. 420, Negligence per se: Rebuttal of the Presumption of Negligence, Violation Excused.

If the statute is lengthy, the judge may want to read it at the end of this instruction instead of at the beginning. The instruction would then need to be revised, to tell the jury that they will be hearing the statute at the end.

Rebuttal of the presumption of negligence is addressed in the instructions that follow (see CACI Nos. 420 and 421).

Sources and Authority

- Negligence per se. Evidence Code section 669.
- ” '[T]he doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.' ” (Turner v. Seterus, Inc. (2018) 27 Cal.App.5th 516, 534 [238 Cal.Rptr.3d 528].)
- ” 'The negligence per se doctrine is codified in Evidence Code section 669, subdivision (a), under which negligence is presumed if the plaintiff establishes four elements: (1) the defendant violated a statute, ordinance, or regulation;

(2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.' 'The burden is on the proponent of a negligence per se instruction to demonstrate that these elements are met.' ” (Taulbee v. EJ Distribution Corp. (2019) 35 Cal.App.5th 590, 596 [247 Cal.Rptr.3d 538], internal citations omitted.)

Evidence Code section 669

Evidence Code - EVID

DIVISION 5. BURDEN OF PROOF; BURDEN OF PRODUCING EVIDENCE; PRESUMPTIONS AND INFERENCES [500 - 670] (Division 5 enacted by Stats. 1965, Ch. 299.)

CHAPTER 3. Presumptions and Inferences [600 - 670] (Chapter 3 enacted by Stats. 1965, Ch. 299.)

ARTICLE 4. Presumptions Affecting the Burden of Proof [660 - 670] (Article 4 enacted by Stats. 1965, Ch. 299.)

669.

(a) The failure of a person to exercise due care is presumed if:

- (1) He violated a statute, ordinance, or regulation of a public entity;
 - (2) The violation proximately caused death or injury to person or property;
 - (3) The death or injury resulted from an occurrence of the nature which the statute, ordinance, or regulation was designed to prevent; and
 - (4) The person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.
- (b) This presumption may be rebutted by proof that:
- (1) The person violating the statute, ordinance, or regulation did what might reasonably be expected of a person of ordinary prudence, acting under similar circumstances, who desired to comply with the law; or
 - (2) The person violating the statute, ordinance, or regulation was a child and exercised the degree of care ordinarily exercised by persons of his maturity, intelligence, and capacity under similar circumstances, but the presumption may not be rebutted by such proof if the violation occurred in the course of an activity normally engaged in only by adults and requiring adult qualifications.

(Added by Stats. 1967, Ch. 650.)

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
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GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

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Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT I

California Vehicle Code section 22352

Notice basis: Evidence Code, section 451, subdivision (a).

Source: California Legislative Information
(leginfo.legislature.ca.gov), Division 11, Chapter 7, Article 1, as harvested 2026-08-19 into CASE-LAW-AND-STATUTES/statutes-cal/VEH-22352.md. The single-section display returns two versions after Stats. 2025, Ch. 555. This exhibit is the currently operative public statutory text (in effect until January 1, 2031). The later-operative version added by Stats. 2025, Ch. 555, Sec. 2, is not attached; it was not in force at trial and is not yet in force. Enactment parentheticals are those published with the official section text. Curly quotation marks in the LegInfo harvest are rendered as ASCII quotation marks.

Vehicle Code section 22352

Vehicle Code - VEH

DIVISION 11. RULES OF THE ROAD | CHAPTER 7. Speed
Laws | ARTICLE 1. Speed Restrictions

22352.

The prima facie limits are as follows and shall be applicable unless changed as authorized in this code and, if so changed, only when signs have been erected giving notice thereof:

(a) Fifteen miles per hour:

(1) When traversing a railway grade crossing, if, during the last 100 feet of the approach to the crossing, the driver does not have a clear and unobstructed view of the crossing and of any traffic on the railway for a distance of 400 feet in both directions along the railway. This paragraph does not apply in the case of any railway grade crossing where a human flagperson is on duty or a clearly visible electrical or mechanical railway crossing signal device is installed but does not then indicate the immediate approach of a railway train or car.

(2) When traversing any intersection of highways, if, during the last 100 feet of the driver's approach to the intersection, the driver does not have a clear and unobstructed view of

the intersection and of any traffic upon all of the highways entering the intersection for a distance of 100 feet along all those highways, except at an intersection protected by stop signs or yield right-of-way signs or controlled by official traffic control signals.

(3) On any alley.

(b) Twenty-five miles per hour:

(1) On any highway in any business or residence district unless a different speed is determined by local authority or the Department of Transportation under procedures set forth in this code.

(2) When approaching or passing a school building or the grounds thereof, contiguous to a highway and posted with a standard "SCHOOL" warning sign, while children are going to or leaving the school either during school hours or during the noon recess period. The prima facie limit shall also apply when approaching or passing any school grounds which are not separated from the highway by a fence, gate, or other physical barrier while the grounds are in use by children and the highway is posted with a standard "SCHOOL" warning sign. For purposes of this subparagraph, standard "SCHOOL" warning signs may be placed at any distance up to 500 feet away from school grounds.

(3) When passing a senior center or other facility primarily used by senior citizens, contiguous to a street other than a state highway and posted with a standard "SENIOR" warning sign. A local authority may erect a sign pursuant to this paragraph when the local agency makes a determination that the proposed signing should be implemented. A local authority may request grant funding from the Active Transportation Program pursuant to Chapter 8 (commencing with Section 2380) of Division 3 of the Streets and Highways Code, or any other grant funding available to it, and use that grant funding to pay for the erection of those signs, or may utilize any other funds available to it to pay for the erection of those signs, including, but not limited to, donations from private sources.

(c) This section shall remain in effect until January 1, 2031, and as of that date is repealed.

(Amended by Stats. 2025, Ch. 555, Sec. 1. (AB 382) Effective January 1, 2026. Repealed as of January 1, 2031, by its own provisions. See later operative version as added by Sec. 2 of Stats. 2025, Ch. 555.)